

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

HECTOR MENDOZA,

Plaintiff,

-against-

THE CITY OF NEW YORK, WILLIAM GRANACHER,
Tax Reg. 934956, and JOHN DOES #1-6 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
May 27, 2015

Yours, etc.

_____/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER WILLIAM GRANACHER, Tax Reg. 934956, 44th Precinct, 2 East
169th Street, Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

HECTOR MENDOZA,

Plaintiff,

-against-

THE CITY OF NEW YORK, WILLIAM GRANACHER,
Tax Reg. 934956, and JOHN DOES #1-6 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, HECTOR MENDOZA, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 2, 2014, at approximately 9:45 p.m., plaintiff Hector Mendoza, while lawfully present inside of 1435 Ogden Avenue, Bronx, New York, was subject to an unlawful stop, question, frisk, search, and detention, false arrest and false imprisonment by the defendant New York City police officers. Plaintiff was deprived of constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, detained, falsely arrested and falsely imprisoned plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Hector Mendoza is a resident of the County of Bronx, State of New York.

3. Police Officer WILLIAM GRANACHER, Tax Reg. 934956, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer WILLIAM GRANACHER, Tax Reg. 934956, is and was at all times relevant herein, assigned to the 44th precinct.

5. Police Officer WILLIAM GRANACHER, Tax Reg. 934956, is being sued in his individual and official capacity.

6. New York City Police Officers John Does #1-6 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does #1-6 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff, in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim against THE CITY OF NEW YORK, in compliance with Municipal Law Section 50.

11. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

12. On May 21, 2015, defendant City of New York conducted a hearing pursuant to general Municipal Law Section 50-h.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On March 2, 2014, at approximately 7:00 p.m., plaintiff Hector Mendoza arrived at 1435 Ogden Avenue, Bronx, New York to visit a friend who lived in Apartment 3D. Plaintiff's friend, a lawful tenant of the building, invited plaintiff as his guest into the building for a visit.

16. Plaintiff entered the building with two of his friends, immediately proceeded to the apartment he was visiting, entered the apartment, and remained there for approximately 3 hours.

17. At approximately 9:45 p.m., plaintiff and the two friends with whom he arrived at the building left the apartment.

18. Plaintiff and his two friends lawfully walked down the stairwell to exit the building.

19. As plaintiff walked down the stairwell from the third floor to the second floor, two defendant police officers stopped, questioned, and frisked plaintiff without reasonable suspicion, probable cause, or any legal basis.

20. Specifically, the defendant police officers unlawfully frisked plaintiff over his clothing, touching all areas of his body.

21. At no time did the defendant police officers recover any weapons, drugs, or illegal contraband from plaintiff.

22. Moreover, at no time did plaintiff commit a crime or give the defendant police officers an objective factual basis to suspect he was committing, had committed, or was about to commit a crime.

23. The defendant police officers then ordered plaintiff to return to the third floor landing, where they questioned him for approximately fifteen minutes about his reason for being at 1435 Ogden Avenue, Bronx New York.

24. One of plaintiff's friends explained to the officers that they were invited to the building by their friend, a lawful tenant, provided the officers' with their friend's name and apartment number, and told the officers that they were exiting the building to go home.

25. Rather than knocking on plaintiff's friend's apartment door to confirm that plaintiff was lawfully in the building, the defendant police officers unlawfully ordered plaintiff to provide them with his identification.

26. Plaintiff complied with the officers' unlawful orders and provided them with his identifying information; however, without any legal or factual basis, the defendant officers accused plaintiff of trespassing into the building.

27. The defendant officers unlawfully ordered plaintiff to accompany them out of the building to their squad car, which was parked in front of 1435 Ogden Avenue, Bronx, New York.

28. Plaintiff complied with the officers' orders and accompanied them to the squad car, where plaintiff was detained while one of the defendant police officers searched to see whether plaintiff had any outstanding warrants and searched to see whether plaintiff had a criminal history. Both searches came back negative.

29. Plaintiff was forced to stand outside in the cold for approximately one hour until the police officers unlawfully issued him a summons containing false and fabricated information and released him.

30. All charges against plaintiff were dismissed on or about May 20, 2014.

31. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally conduct, enforce and sanction an unlawful vertical patrol and trespass arrest policy which has resulted in a pattern and practice of illegal stops, seizures, questioning, searches, and false arrests of residents of, and authorized visitors to, NYCHA residences.

32. Under the NYPD's unlawful trespass arrest practices, New York City Police Department officers conduct roving pedestrian checkpoints in and around NYCHA residences, wherein they indiscriminately stop and question every person they observe, without objective individualized suspicion of a crime and unlawfully arrest individuals for trespass without probable cause.

33. The NYPD's unlawful trespass arrest practices implemented by NYPD officers and supervisors fails to require that an arresting officer act upon observed behavior that reliably differentiates a suspected trespasser or "unauthorized person" in a NYCHA hallway from a lawful visitor in transit, or a building resident enjoying the common area of his own home.

34. Defendants' failure to provide adequate guidance, training, and support to NYPD officers regarding whom to stop, question, seize, search and arrest for trespass, results in a de facto roving checkpoint and a pattern and practice of unlawful stops, seizures, and arrests.

35. The only guiding principles provided to NYPD officers are consistent with, and reflective of, a policy, practice, and custom of reckless arrests based on less than probable cause.

36. As a result of defendant City of New York and the New York City Police Department's policy, practice, and custom of unlawful trespass arrest practices in NYCHA buildings, plaintiff, Hector Mendoza, was subjected to an unconstitutional stop, question, frisk, assault, battery, arrest, detention and malicious prosecution on the date of the incident.

37. The unconstitutional stop, question, frisk, and detention of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked seized, searched, detained and maliciously prosecuted in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

41. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Unlawful Search

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

44. Defendants lacked probable cause to search plaintiff.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Hector Mendoza. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

52. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

56. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

57. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Malicious Prosecution

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

63. Defendants commenced and continued a criminal proceeding against plaintiff.

64. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

65. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

66. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The vertical patrol policy and trespass arrest practices involve systemic stopping, seizing, questioning, and searching of any and all persons observed in common areas of NYCHA residences absent individualized suspicion.

71. By adopting and implementing the vertical patrol policy and trespass arrest practices in this manner, the City of New York and the New York City Police Department has enforced, promoted, encouraged and sanctioned a policy, practice, and/or custom of roving pedestrian checkpoints for general crime control wherein they indiscriminately stop and seize individuals in the absence of objective, individualized criteria in violation of the Fourth Amendment to the United States Constitution.

72. By adopting and implementing the vertical patrol policy and trespass arrest practices in this manner, the City of New York and the New York City Police Department has enforced, promoted, encouraged and sanctioned a policy, practice and/or custom of arresting individuals for trespass without probable cause to establish that a criminal offense has been or is being committed, as required by the Fourth Amendment to the United States Constitution.

73. These Constitutional abuses and violations were, and are, directly and proximately caused by policies, practices and/or customs devised, implemented, enforced, promoted, encouraged and sanctioned by the City of New York and the New York City Police Department, including but not limited to: (a) the failure to adequately and properly screen, train, and supervise NYPD officers; (b) the failure to properly and adequately monitor and discipline NYPD officers; and (c) the overt and tacit encouragement and sanctioning of, and the failure to rectify, the NYPD's suspicionless stops, seizures, questions, searches and arrests for trespass.

74. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

75. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

76. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

77. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, frisked, searched, arrested, and detained.

78. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

EIGHTH CAUSE OF ACTION

False Arrest and False Imprisonment

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

81. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

82. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

JURY DEMAND

89. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Hector Mendoza demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 29, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER WILLIAM GRANACHER, Tax Reg. 934956, 44th Precinct, 2 East
169th Street, Bronx, New York 10452

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 29, 2015

_____/s/_____
STUART E. JACOBS